

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Public Redacted Joint Supplemental Brief

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** July 2, 2026 **Access:** Public counterpart

Open Grid and DOE submit this public joint brief under the June 23 rehearing order. They agree on the fixed premise, arithmetic, and governing distinctions but preserve their different views about whether the corrected evidence warrants affirmance of every target. No new evidence accompanies the submission.

The responsive universe remains twelve records and 200 source pages. The original production comprises 146 images, including sixty-eight without blackout and seventy-eight with redaction. The later release changed eleven existing images but did not identify another responsive record or source page.

This public form uses only approved category notices. Its sealed counterpart has equal pagination and corresponding subjects, yet is independently worded. The pair exists solely within the isolated docket and cannot be used to establish an event or fact in the actual appeal. Both sides confirm that the joint format records disagreement openly and supplies no inference about the panel's eventual decision.

Narrow Exemption 7(E) Functions

The parties agree that general knowledge of a response framework does not resolve whether implementation detail is protected. The corrected record identifies [REDACTED—FICTIONAL DECISION CONDITION] and [REDACTED—FICTIONAL RESPONSE ORDER] only where their relationship organizes an approved decision structure. It treats [REDACTED—FICTIONAL ESCALATION VALUE] separately as a guideline when the required circumvention explanation is supplied.

DOE contends that the page-linked worksheet correlates each retained relation to its source and safely explains its function. Open Grid agrees that authentic trigger order may fall within 7(E), but emphasizes that an owner, title, approval line, or neutral heading does not become implementation merely because it appears nearby.

Both parties ask the panel to state the boundary without exposing a value. Position is relevant only if it conveys the protected relation. Otherwise, meaningful administration must remain public. The dispute is whether the worksheet and representative explanations establish that distinction for every residual segment.

No participant requests a real condition, sequence, threshold, system characteristic, or method.

Limited Exemption 7(F) Correlations

The corrected premise permits four human-function groups after segment review: duty assignment, contact category, safety reference, and human-linked escalation placement. The public notices are [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL CONTACT CHANNEL], [REDACTED—FICTIONAL SAFETY REFERENCE], and, where human protection is implicated, [REDACTED—FICTIONAL ESCALATION VALUE].

DOE states that the worksheet connects each segment to an expected physical-safety harm. Authentic assignment information could focus interference on a protective function; a contact category could facilitate misdirection; a safety reference could expose the safeguard an interferer would target; and escalation placement could show when human protection becomes relevant.

Open Grid agrees those explanations are legally testable but disputes any inference based only on the category name. A caption or administrative distribution statement must perform the stated function before it enters the group. A dual marking needs an independent justification under each exemption.

The panel can clarify that safe abstraction is sufficient only when source, function, and harm are actually correlated.

Judicial Verification of the Vaughn Showing

The corrected account identifies source record, page, segment, field function, exemption, overlap, and anticipated harm. Public text permits argument about those dimensions. Authorized controlled comparison shows placement without communicating any genuine content.

The parties agree that a completed row is not conclusive by itself. A reviewing court must assess declarant foundation, visible context, consistency among the indexes and worksheet, and whether the stated function fits the segment. It may use representative reasoning when a coherent group truly shares those features.

For example, [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], and [REDACTED—FICTIONAL ESCALATION VALUE] require explanations different from [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL]. One set concerns implementation or guidelines; the other requires a reasonable disclosure-to-danger connection.

DOE says the corrected record supports those separate inferences. Open Grid asks the opinion to identify the safe analytical step for the most contested administrative contexts. Neither side proposes publication of a withheld value.

Line-Review Method and Residual Text

The renewed protocol asks whether visible language carries independent administrative meaning, whether location alone reveals a protected relation, whether a heading remains useful after deletion, and whether general coordination can be detached from a human-function field. Reviewers record an answer for each retained segment and each candidate fragment.

The method distinguishes proximity from function. An ordinary owner line can remain public even when a later [REDACTED—FICTIONAL DECISION CONDITION] or [REDACTED—FICTIONAL RESPONSE ORDER] is withheld. A general coordination sentence may be separated from [REDACTED—FICTIONAL DUTY ROLE] or [REDACTED—FICTIONAL CONTACT CHANNEL] when the sentence does not expose the association.

DOE submits that the final worksheet applies these questions to every responsive page, including the three records withheld in full. Open Grid accepts the protocol but asks the panel to explain how it confirmed the treatment of plausible administrative fragments.

The parties agree that meaningless remnants need not be released and that positional disclosure can matter. They differ only on whether the corrected evidence proves the residual conclusions in every instance.

Supplemental Release on Existing Images

The supplemental review released exactly seventeen passages across eleven already-produced images. Six images received two passages each, and five images received one. Decision materials account for six passages on four images, an exercise matrix for three on two, the current coordination appendix for five on three, and the prior appendix for three on two.

The released subjects include ownership, neutral headings, approval status, revision context, recordkeeping, general coordination, archival direction, and closure administration. Reviewers removed retained associations with [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], [REDACTED—FICTIONAL ESCALATION VALUE], [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], or [REDACTED—FICTIONAL CONTACT CHANNEL] before disclosing the new text.

The parties agree that replacement images are not new source pages. The twelve-record, 200-page universe and the 146-image original production remain fixed. DOE views the release as confirmation that the method worked; Open Grid views it as a reason for careful judicial testing of what remains.

Proof of Complete Segregation

The supplemental count does not alone establish completion. The affirmative proof is the combination of review protocol, page-level decisions, disclosed subject matter, residual explanations, and examination of candidate fragments within the wholly withheld records.

DOE says the worksheet shows why every remaining occurrence of [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], or [REDACTED—FICTIONAL ESCALATION VALUE] either communicates a protected relation or leaves no meaningful statement after deletion. It provides the same contextual treatment for limited [REDACTED—FICTIONAL DUTY ROLE] segments.

Open Grid asks the Court to distinguish a genuinely relational heading from a general administrative caption. It agrees that a fragment without informational value need not be disclosed, but argues that the public reasoning should demonstrate why the most plausible candidates fail.

Both parties accept that segregation remains separate from exemption coverage. The panel may affirm only if it finds the corrected review complete after testing the evidence, not because the production contains a large number of released images.

Passage-Specific Access and Public Counterparts

The February 12 limited-sealing motion and certificate conditionally cover this fourth pair because the June 23 order required it. The public brief is the default projection. The sealed counterpart does not appear in an unauthorized result, and eligibility under the certificate is not a grant.

A controlled view requires a new session event naming this exact disclosure and resolved pack closure. Before every open, the system checks the expected content-addressed path, byte size, digest, readability, and ten-page count. A successful check exposes only a leased snapshot. Revocation removes the sealed row and restores the public-only result.

Those mechanics apply to passages corresponding to all six notices: [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], [REDACTED—FICTIONAL ESCALATION VALUE], [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL].

The parties agree that enforcement cannot replace legal justification. The Court must first identify the access right, supported interest, alternative, scope, and finite duration for each controlled passage. Public notice and this counterpart remain available throughout.

Parties' Positions on the Four Targets

DOE asks the panel to preserve full affirmance. It says the corrected worksheet supports [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], and [REDACTED—FICTIONAL ESCALATION VALUE] under the narrow 7(E) rule and establishes causation for [REDACTED—FICTIONAL DUTY ROLE], [REDACTED—FICTIONAL SAFETY REFERENCE], and [REDACTED—FICTIONAL CONTACT CHANNEL] where retained.

DOE further argues that the page-level review proves complete segregation and that the access order makes independent passage findings before applying technical controls. It requests a revised opinion explaining those steps more fully without changing the judgment.

Open Grid accepts genuine implementation protection and the possibility of limited 7(F) groups. It asks the panel to require clearer treatment of disputed correlations and administrative fragments. If the existing record does not supply that support, it seeks a narrow remand rather than disclosure of any asserted protected value.

The parties agree the Court must decide each target separately. Neither side asks the panel to alter the search, source inventory, or corrected premise.

Joint Certification

The parties certify that this ten-page public brief answers the June 23 questions and contains their complete public positions. It adds no evidence, responsive record, source page, production image, or operational fact. It does not forecast how the rehearing panel will rule.

The sealed counterpart covers the same subjects with independent prose and inert labels. Its existence follows the court-ordered conditional coverage of the February 12 motion and certificate. Nothing about that coverage creates automatic access or changes the public default.

Tamsin Roe and Leo Marr sign for Open Grid. Corin Pell signs for DOE. Each certifies service through the isolated exercise system on July 2, 2026 and confirms that no real person, system, location, technical value, vulnerability, credential, or response direction appears in either form.

The joint filing preserves the parties' distinct requested dispositions while narrowing their disagreement to application of the corrected evidence. It was never filed or entered on the actual appeal.